

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX----- x
EURY ACOSTA,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER MICHAEL
MENESES, Tax No. 964654, and POLICE OFFICERS
JOHN DOES #1-5,Defendants.
----- x

Index No.:

Date Purchased:

SUMMONSPlaintiff designates
Bronx County as
the place of trial.The basis of venue is:
Locus of Occurrence**TO THE ABOVE-NAMED DEFENDANTS:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the State of New York, or, within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
March 22, 2022

ALEXANDER STEPANKOVSKIY, ESQ.
LAW OFFICE OF
ALEXANDER STEPANKOVSKIY, PLLC
Attorneys for Plaintiff
EURY ACOSTA
44 Court Street, Suite 1217
Brooklyn, New York 11201
(718) 223-5531**TO:** THE CITY OF NEW YORK
100 Church Street
New York, New York 10007POLICE OFFICER MICHAEL MENESES, Tax No. 964654
c/o NYPD – 44th Precinct
2 East 169th Street
Bronx, New York 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
EURY ACOSTA,

Index No.:

Date Purchased:

Plaintiff,

-against-

COMPLAINT

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER MICHAEL
MENESES, Tax No. 964654, and POLICE OFFICERS
JOHN DOES #1-5,

Defendants.
----- X

Plaintiff, by his attorneys, LAW OFFICE OF ALEXANDER STEPANKOVSKIY, PLLC,
complaining of the Defendants herein, respectfully alleges, upon information and belief:

**AS AND FOR A FIRST CAUSE OF ACTION FOR
ASSAULT AND BATTERY ON BEHALF OF EURY ACOSTA**

1. That at all times hereinafter mentioned, plaintiff, EURY ACOSTA, was and still is
a resident of the County of New York, City and State of New York.

2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK,
was and still is a municipal corporation, duly organized and existing pursuant to the laws of the
State of New York.

3. That the defendant, THE CITY OF NEW YORK, maintains a police force known
as the NEW YORK CITY POLICE DEPARTMENT.

4. That prior hereto on March 23, 2021, and within the time prescribed by law, a sworn
Notice of Claim stating, among other things, the time when and place where the injuries and
damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and
that thereafter the CITY OF NEW YORK, refused or neglected for more than thirty (30) days and

up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That on October 13, 2021, pursuant to the General Municipal Law, a Statutory 50-H hearing of plaintiff was held.

6. That on December 23, 2020, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER MICHAEL MENESES, Tax No. 964654, and POLICE OFFICERS JOHN DOES #1-5, as agents, servants and/or employees.

7. That on December 23, 2020, and at all times hereinafter mentioned and upon information and belief, the plaintiff, EURY ACOSTA, was lawfully present in front of the premises known as of Gerard Avenue and East 157th Street, County of Bronx, City and State of New York.

8. That on December 23, 2020, and at all times hereinafter mentioned and upon information and belief, the plaintiff, EURY ACOSTA, was assaulted and battered by defendants, POLICE OFFICER MICHAEL MENESES, Tax No. 964654, and POLICE OFFICERS JOHN DOES #1-5, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid premises.

9. That on December 23, 2020, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

10. That on December 23, 2020, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER MICHAEL MENESES, Tax No. 964654, and POLICE OFFICERS JOHN DOES #1-5, who committed the aforementioned assault

and battery upon the plaintiff, EURY ACOSTA, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

11. That on December 23, 2020, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

12. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

13. By the reason of the foregoing, the plaintiff, EURY ACOSTA, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF EURY ACOSTA**

14. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "13" inclusive with the same force and effect as if more fully set forth at length herein.

15. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER MICHAEL MENESES, Tax No. 964654, and POLICE OFFICERS JOHN DOES #1-5, who violated the civil rights of the plaintiff, EURY ACOSTA.

16. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER MICHAEL MENESES, Tax No. 964654, and POLICE OFFICERS JOHN DOES #1-5, and continued to employ them and allowed them to be in contact with the public at large.

17. By the reason of the foregoing, the plaintiff, EURY ACOSTA, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
FALSE ARREST ON BEHALF OF EURY ACOSTA**

18. The plaintiff repeats and realleges each and every allegation set forth above numbered “1” through “17” inclusive with the same force and effect as if more fully set forth at length herein.

19. That on December 23, 2020, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER MICHAEL MENESES, Tax No. 964654, and POLICE OFFICERS JOHN DOES #1-5, were acting within the scope of their employment when they arrested and confined the plaintiff.

20. That on December 23, 2020, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

21. That as a result of the aforesaid false arrest and confinement, plaintiff, EURY ACOSTA, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

22. By the reason of the foregoing, the plaintiff, EURY ACOSTA, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
FALSE IMPRISONMENT ON BEHALF OF EURY ACOSTA**

23. The plaintiff repeats and realleges each and every allegation set forth above numbered “1” through “22” inclusive with the same force and effect as if more fully set forth at length herein.

24. That on December 23, 2020, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER MICHAEL MENESES, Tax No. 964654, and POLICE OFFICERS JOHN DOES #1-5, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

25. That defendants, POLICE OFFICER MICHAEL MENESES, Tax No. 964654, and POLICE OFFICERS JOHN DOES #1-5, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

26. By the reason of the foregoing, the plaintiff, EURY ACOSTA, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
CIVIL RIGHTS VIOLATION ON BEHALF OF EURY ACOSTA**

27. The plaintiff repeats and realleges each and every allegation set forth above numbered “1” through “26” inclusive with the same force and effect as if more fully set forth at length herein.

28. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER MICHAEL MENESES, Tax No. 964654, and POLICE OFFICERS JOHN DOES #1-5, were acting under the color of law and within the scope of their authority, assaulted, battered, falsely arrested and falsely imprisoned the plaintiff, EURY ACOSTA, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

29. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER MICHAEL MENESES, Tax No. 964654, and POLICE OFFICERS JOHN DOES #1-5, acting under color of law and within the scope of their authority, deprived the plaintiff, EURY ACOSTA, of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

30. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

31. That the false arrest and false imprisonment was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

32. That the deprivation by the defendants of plaintiff's civil rights was a result of the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER MICHAEL MENESES, Tax No. 964654, and POLICE OFFICERS JOHN DOES #1-5, acting under color of law and within their authority as law enforcement officers within the employ of the defendant, THE CITY OF NEW YORK.

33. That the defendants' actions were not privileged or immune.

34. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER MICHAEL MENESES, Tax No. 964654, and POLICE OFFICERS JOHN DOES #1-5, were not acting with immunity when they deprived plaintiff of his civil rights.

35. By the reason of the foregoing, the plaintiff, EURY ACOSTA, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF EURY ACOSTA**

36. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "35" inclusive with the same force and effect as if more fully set forth at length herein.

37. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

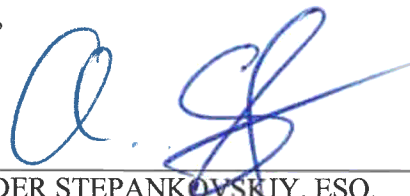
38. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to defendant, POLICE OFFICER MICHAEL MENESES, Tax No. 964654, and POLICE OFFICERS JOHN DOES #1-5, herein-above alleged.

39. By the reason of the foregoing, the plaintiff, EURY ACOSTA, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, EURY ACOSTA, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the First Cause of Action; plaintiff, EURY ACOSTA, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Second Cause of Action; plaintiff, EURY ACOSTA, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Third Cause of Action; plaintiff, EURY ACOSTA, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Fourth Cause of Action; plaintiff, EURY ACOSTA, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Fifth Cause of Action; plaintiff, EURY ACOSTA, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Sixth Cause of Action; together with the costs and disbursements of this action.

Dated: Brooklyn, New York
March 22, 2022

Yours, etc.,

A handwritten signature in blue ink, appearing to be 'A. S.', is written over a horizontal line.

ALEXANDER STEPANKOVSKIY, ESQ.
LAW OFFICE OF
ALEXANDER STEPANKOVSKIY, PLLC
Attorneys for Plaintiff
EURY ACOSTA
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(718) 223-5531

ATTORNEY VERIFICATION

ALEXANDER STEPANKOVSKIY, ESQ., an attorney duly admitted to practice law before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the managing attorney with the LAW OFFICE OF ALEXANDER STEPANKOVSKIY, PLLC, attorneys of record for Plaintiff, **EURY ACOSTA**. I have read the annexed **SUMMONS AND COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiff is that Plaintiff is not presently in the county wherein the attorney for the plaintiff maintains his office.

Dated: Brooklyn, New York
March 22, 2022

A handwritten signature in blue ink, appearing to read 'A. S.', with a long horizontal stroke extending to the right.

ALEXANDER STEPANKOVSKIY, ESQ.

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SUMMONS AND COMPLAINT

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